Business as Usual? The UFLPA and the Politics of Rights-Based Trade Sanctions

Brian Leung

Postdoctoral Fellow

Clements Center for National Security, UT Austin

brian.leung@austin.utexas.edu

Abstract

When can human rights prevail over business interests in the making of economic sanctions? The passage of the Uyghur Forced Labor Prevention Act (UFLPA) in 2021, which presumptively bans imports from Xinjiang, China, challenges expectations of business dominance in U.S. foreign economic policymaking. Drawing on 15 elite interviews, transcripts from 37 congressional hearings, and multiple sources of original data, I explain how framing Uyghur repression as forced labor inside American supply chains reshaped the coalitional politics behind the bill. I identify three mechanisms. First, diaspora and other civil society actors' longstanding institutional embeddedness enabled them to secure access to politicians and advance policy proposals. Second, the forced labor frame bridged the religious right's commitment to international religious freedom and the pro-labor left's concerns about labor standards, broadening a bipartisan, interbranch coalition. Third, reputational pressure constrained businesses' public opposition, redirecting their efforts toward private bargaining over specific provisions and creating political space for the bill's advancement. Business influence thus depended on coalitional dynamics and the institutionally grounded contestation among businesses, civil society actors, and politicians. This study contributes to understanding the sources of human rights policy, diaspora influence, and bipartisan policymaking.

Word count: 12668

Keywords: Human rights; trade restrictions; business lobbying; legislative process

Introduction

When can human rights prevail over business interests in the making of economic sanctions? Conventional wisdom suggests that they rarely do. Multinational corporations lobby against sanctions harming their supply chain interests (Zhao, 2026), and policymakers often avoid sanctioning trade partners over human rights abuses (Attia and Grauvogel, 2023; Curtice and Reinhardt, 2024). The history of U.S.-China trade politics illustrates the longstanding view of business dominance in foreign policymaking (Jacobs and Page, 2005). As a presidential candidate, Clinton criticized George H. W. Bush for resisting human-rights conditions on China's most-favored-nation (MFN) trade status. Yet as president, he delinked the two in 1994, partly in response to business lobbying (Hung, 2020). In short, trade dependence should make sanctions unlikely (Cox and Drury, 2006; Hafner-Burton and Montgomery, 2008).

The passage of the Uyghur Forced Labor Prevention Act (UFLPA) of 2021 is surprising against this record. The bill was designed to address the systematic, arbitrary detention of Uyghurs and other Muslim minorities and the forced labor imposed on them in China's Xinjiang Uygur Autonomous Region since 2017.[1] It presumptively bans *all* imports of goods produced wholly or in part in Xinjiang, shifting the burden to U.S. importers to prove that the goods were not made with forced labor. The bill faced counterlobbying from large multinationals reliant on imports from the region, including Nike, Coca-Cola, and Apple.[2] A senior congressional staffer involved in the legislative process recalled, "I did not believe it could ever pass…I was like the business community is going to weigh in and this is going to be dead."[3]

Yet the bill did pass, a highly improbable outcome in a Congress that enacted only 2 percent of

[1]The Office of the United Nations High Commissioner for Human Rights concluded that "the extent of arbitrary and discriminatory detention of members of Uyghur … may constitute … crimes against humanity" (OHCHR, 2022). Separately, the UN Special Rapporteur on contemporary forms of slavery regarded "it as reasonable to conclude that forced labour among Uighur, Kazakh and other ethnic minorities has been occurring" in the XUAR (Obokata, 2022).

[2]Reed Albergotti, "Apple Is Lobbying Against a Bill Aimed at Stopping Forced Labor in China," *The Washington Post*, November 20, 2020, https://www.washingtonpost.com/technology/2020/11/20/apple-uighur; Ana Swanson, "Nike and Coca-Cola Lobby Against Xinjiang Forced Labor Bill," *The New York Times*, November 29, 2020, https://www.nytimes.com/2020/11/29/business/economy/nike-coca-cola-xinjiang-forced-labor-bill.html.

[3]Interview 2, conducted by the author in person, Washington, DC, July 8, 2025.

introduced measures as standalone legislation.[4] Since its enactment, U.S. Customs and Border Protection (CBP) has detained $4.13 billion worth of shipments and denied entry to 60 percent of them.[5] The bill has been "extremely effective in making the CEOs and companies aware of the need to have traceability and transparency in their supply chains," a senior executive at an industry association explained.[6] How did the bill's proponents overcome business opposition and impose such sweeping supply chain costs on multinational corporations?

I situate the UFLPA among the population of *rights-based economic sanctions*: policy measures that restrict trade (export or import) or financial activities between senders and targets, with addressing human rights abuses as one of policymakers' declared objectives.[7] The Uyghur bill offers a theoretically productive opportunity to study such phenomena: as a deviant case with a surprising outcome, it can help generate new explanations potentially applicable to other cases (Seawright and Gerring, 2008). Furthermore, it offers analytical leverage through temporal variation: the issue of forced labor in Xinjiang first attracted congressional attention in the 1990s without resulting in targeted legislation, and the UFLPA's legislative process spanned both the first Trump administration and the Biden administration. Both features allow for within-case comparisons across periods to adjudicate competing explanations.

I argue that business influence in the making of economic sanctions is contingent on how an issue is framed and, more importantly, the *coalitional dynamics* that the framing produces. Beginning in 2018, the bill's proponents reframed the Uyghur issue to connect religious repression abroad *with* forced labor inside American supply chains. In this paper, I examine how this reframing reconfigured the coalitional dynamics within and between three sets of actors—civil society actors, businesses, and politicians—tilting the balance of power in favor of the bill's proponents to overcome business opposition.

Specifically, I explain three mechanisms through which these actors shaped, or were shaped by,

[4]GovTrack.us, "Statistics and Historical Comparison," https://www.govtrack.us/congress/bills/statistics

[5]U.S. Customs and Border Protection (CBP), "Uyghur Forced Labor Prevention Act Statistics," accessed October 9, 2026, https://www.cbp.gov/newsroom/stats/trade/uyghur-forced-labor-prevention-act-statistics.

[6]Interview 6, conducted by the author in person, Washington, DC, July 15, 2025.

[7]The definition is adapted from Felbermayr et al. (2025). Other types of sanctions not considered in this study include travel sanctions, arms sanctions, and military sanctions.

the Uyghur forced labor frame. First, civil society actors supplied and certified the frame through their *institutional embeddedness*. Uyghur diaspora and other civil society groups were embedded in longstanding advocacy networks through sustained engagement with congressional bodies and relationship-building with legislators. These repeated interactions generate trust and know-how. Policymakers thus come to treat these groups as credible partners and become more likely to take up their information subsidies and policy suggestions (Montal, Pauselli, and Urzúa, 2026).

Second, the frame broadened the political coalition through *frame bridging* (Snow et al., 1986). By connecting the persecution of the predominantly Muslim Uyghur population to the violation of labor standards affecting American workers, the frame linked religious-freedom concerns on the right with labor-rights concerns on the left—two foundational, but often separate, traditions in American politics. This bridging enabled executive officials and legislators with distinct ideological commitments to converge on common policy responses, including a sweeping import ban.

Third, the frame constrained business counter-mobilization through *reputational pressure*. By casting the bill as a measure against forced labor, proponents made public opposition difficult to reconcile with businesses' prior commitments against the practice. Political and media scrutiny further increased the reputational costs of this inconsistency, forcing firms and business associations to shift from openly contesting the bill to quietly weakening its regulatory standards. This retreat from open contestation created political space for the proponents to advance the bill.

Methodologically, I conduct process-tracing in an *explaining-outcome* fashion, combining different causes and mechanisms to account for the complexity of a single, surprising case (Beach and Pedersen, 2016; Sil and Katzenstein, 2010). I discipline my within-case inferences by adjudicating my proposed mechanisms against existing hypotheses and leveraging temporal variation within the case whenever possible (Ricks and Liu, 2018). I adopt a strategy of triangulation (Gheciu, 2005) and bring together an original collection of evidence from multiple sources. These novel materials include 15 semi-structured interviews with policymakers and interest group representatives involved in the legislative process, transcripts from 37 congressional hearings, business lobbying expenditures, congressional floor speeches, and government and industry statements.

This article contributes to research at the intersection of rights-based economic sanctions and business lobbying (Attia and Grauvogel, 2023; Urtuzuastigui, 2023; Curtice and Reinhardt, 2024; Zhao, 2026). I demonstrate the need to situate business influence within broader coalitional dynamics involving civil society actors and politicians and to examine how these actors compete and negotiate with one another to shape policy. While existing work on diaspora groups' influence in foreign policymaking follows an electorate-driven logic and emphasizes their ability to shape elections (Whang, 2011; Kustra, 2022; Kopchick et al., 2022), I draw on recent studies that emphasize the elite-driven nature of U.S. foreign policymaking (Saunders, 2022; Alshaibi, 2024; Jost et al., 2024) to highlight the importance of diaspora groups' institutional embeddedness (Montal, Pauselli, and Urzúa, 2026). This study also contributes to the literature on bipartisanship in foreign policymaking (Tama, 2024; Carothers and Sun, 2023) by showing that one source of bipartisanship on China is politically contingent and deeply rooted in domestic coalitional politics.

Human rights policy and the limits of congressional assertiveness

Scholars of diplomatic history and congressional politics have attributed the rise of human rights in U.S. foreign policy to *congressional assertiveness* since the 1970s, as lawmakers used human rights as a vehicle to challenge the "imperial presidency" and to rein in executive power in foreign affairs in the post-Vietnam war era (Apodaca, 2006; Keys, 2010). Beginning with dozens of hearings led by Representative Donald Fraser (D-MN), Congress passed a series of laws to tie economic and military assistance to countries' human rights records and restricted aid to partners such as Chile and South Korea. It also mandated country human rights reporting and facilitated the institutionalization of the State Department's human rights machinery, precisely *because of* Secretary of State Henry Kissinger's resistance to what he perceived as legislative meddling (Keys, 2010).

Congressional challenges to executive authority also helped drive human rights policy and economic sanctions toward China in the early 1990s. Following the 1989 Tiananmen Square crackdown, lawmakers criticized the George H. W. Bush administration's efforts to mend ties

and maintain engagement with Beijing. Led by Representative Nancy Pelosi (D-CA) and Senate Majority Leader George Mitchell (D-ME), with support from overseas Chinese student leaders, a congressional coalition sought to condition renewal of China's MFN trade status on improvements in human rights (Mann, 1999). As China's MFN status depended on an annual presidential waiver under the Jackson–Vanik amendment of the Trade Act of 1974, it gave Congress recurring opportunities to contest the president's policy on China. Congress twice passed legislation imposing such conditions, but Bush vetoed both bills in 1992. Reflecting on this battle that brought her to national prominence early in her congressional career, Pelosi recalled, "I'm a complete nobody and, all of a sudden, I'm challenging the president of the United States."[8]

The congressional assertiveness account would predict that the UFLPA emerged from lawmakers' efforts to challenge the executive's resistance to punitive measures, particularly when those lawmakers belonged to the opposition party. The problem with this account is that important policy precursors to the bill were implemented by the *executive branch* during the first Trump administration, despite Trump's own ambivalence. Executive agencies had imposed wide-ranging export controls, "Global Magnitsky" financial sanctions, and import restrictions against Chinese officials and entities in response to human rights abuses in Xinjiang.[9] Most directly relevant to the UFLPA, U.S. CBP issued ten Withhold Release Orders (WROs) pursuant to Section 307 of the Tariff Act of 1930[10] against products made with forced labor in Xinjiang during Trump's first term. CBP's efforts culminated in a region-wide WRO banning cotton and tomato products in January 2021—around the same time Secretary of State Mike Pompeo declared China's treatment of the

[8]Nancy Pelosi, interview quoted in Davis (2025).

[9]See U.S. Departments of State, the Treasury, Commerce, Homeland Security, and Labor, and Office of the United States Trade Representative, *Xinjiang Supply Chain Business Advisory*, updated July 13, 2021, for a list of executive actions: https://ofac.treasury.gov/system/files/126/20210713_xinjiang_advisory_0.pdf.

[10]Withhold Release Orders (WROs) direct customs officials to detain imports suspected of being produced with forced labor and require importers to demonstrate admissibility for the imports to be released. Their statutory authority comes from Section 307 of the Tariff Act of 1930, which prohibits imports made with forced labor. Although de jure prohibition had existed for decades, enforcement was hamstrung by the longstanding "consumptive demand" loophole, which permitted such imports when domestic production was insufficient to meet U.S. consumers' demand. This exception was ultimately removed by the Trade Facilitation and Trade Enforcement Act (TFTEA) of 2015. It greatly empowered CBP's enforcement efforts: the agency issued 29 WROs between February 2016 and January 2021, after issuing none during the preceding fifteen years (Cimino-Isaacs, Casey, and O'Regan, 2021).

Uyghurs to constitute genocide.[11]

This is not to suggest that congressional pressure was irrelevant. Michael Posner, a former senior official at the State Department's Bureau of Democracy, Human Rights, and Labor (DRL), himself emphasized its importance. At a congressional hearing, he credited lawmakers with spurring recent executive actions on Xinjiang: "None of that would have happened if Congress hadn't been on the ball."[12] Nor does it mean that Congress and the executive did not clash. One of the greatest obstacles to the UFLPA's passage, as I discuss below, came from within the Biden administration over concerns about securing China's cooperation on climate change. This interbranch conflict occurred, perhaps surprisingly, under unified Democratic control of Congress and the presidency during the 117th Congress.

Coalition building and the limits of protectionist explanations

Congressional assertiveness alone, however, cannot fully account for the executive actions preceding the bill or explain their source. Instead, my account focuses on how the forced labor frame broadened the political coalition across branches of government and party lines through *frame bridging*: "the linkage of two or more ideologically congruent but structurally unconnected frames" that aligned and mobilized otherwise disparate actors (Snow et al., 1986). I argue that framing repression against the Uyghurs in terms of religious persecution *and* forced labor connected the right's commitment to religious freedom with the left's commitment to international labor standards. This connection enabled proponents to draw on two distinct networks of sympathetic politicians and staff, specialized government bodies, and repertoires of policy tools. Together, these resources enabled an interbranch, bipartisan coalition rooted in two foundational issue areas in American politics. As the following sections show, senior officials in the Trump administration closely aligned with the evangelical Christian right were the first mover in endorsing import bans

[11] Michael R. Pompeo, "Determination of the Secretary of State on Atrocities in Xinjiang," press statement, U.S. Department of State, January 19, 2021, https://2017-2021.state.gov/determination-of-the-secretary-of-state-on-atrocities-in-xinjiang/.

[12] *Forced Labor, Mass Internment, and Social Control in Xinjiang: Hearing before the Congressional-Executive Commission on China*, 116th Cong., 1st sess., October 17, 2019, 11 (statement of Michael Posner).

and other sanctions as part of their broader agenda to promote international religious freedom. Pro-labor legislators, in turn, played a crucial role in advancing the bill through the committee stage where business lobbying often exercises disproportionate influence.

That pro-labor lawmakers and unions were an important *part* of the legislative coalition does not mean that the UFLPA can be reduced to interest-group competition and protectionism. An influential political-economy model theorizes economic sanctions as the outcome of domestic producers lobbying for import restrictions to shield themselves from foreign competition (Kaempfer and Lowenberg, 1988). While protectionist concerns help explain some pro-labor lawmakers' support for the bill, temporal variation in U.S. responses to forced labor in China suggests the limits of this explanation. China's use of prison labor through the *laogai* (reform through labor) system was a prominent issue in U.S.-China bilateral negotiations throughout the 1990s (Lampton, 2001).[13] Organized labor, particularly the AFL-CIO, took on the issue in the early 1990s and was influential in advocating stricter enforcement of U.S. import bans on prison-made goods from China. Jeffrey L. Fiedler, president of the AFL-CIO's Food and Allied Service Trades Department, co-founded and directed the Laogai Research Foundation with Harry Wu, a *laogai* survivor and a frequent witness before Congress. In fact, they both testified at a hearing dedicated to World Bank projects in Xinjiang linked to forced labor on July 25, 1996—the first time forced labor in Xinjiang received congressional attention, though it was still understood as part of the broader *laogai* issue.[14]

Organized labor's longstanding advocacy against forced labor in China and for import restrictions in the U.S. raises a question about legislative timing that an interest-group explanation alone cannot resolve: why did a legislative response like the UFLPA emerge in 2020 rather than decades earlier? My account instead argues that the full coalition uniting the religious right and the pro-labor left did not emerge until the *Uyghur forced labor* frame—not just forced labor that happened to occur in Xinjiang, but forced labor as an integral part of the persecution against an

[13] The two countries signed two Memorandums of Understanding in 1992 and 1994 to prohibit trade in prison-made goods and strengthen monitoring, but implementation remained limited.

[14] *World Bank Projects in Xinjiang, China: Hearing before the Senate Committee on Foreign Relations*, 104th Cong., 2d sess., July 25, 1996, S. Hrg. 104–660.

ethnic and religious minority—took shape in the late 2010s, alongside other enabling factors that I discuss next.

Diaspora influence and the limits of electorate-driven explanations

Another prominent explanation of rights-based sanctions emphasizes the influence of ethnic or diaspora groups on U.S. foreign policymaking. Recent scholarship identifies diaspora size and geographical concentration as key determinants of these groups' ability to influence economic sanctions against their homelands. Large diasporas are more likely to secure rights-based economic sanctions because they are better able to lobby lawmakers and mobilize public opinion (Urtuzuastigui, 2023). Constituting a large share of the swing-state electorate also helps diasporas to secure sanctions from the president against their homelands (Kustra, 2022). In addition, geographically concentrated diasporas are more likely to organize and lobby the government, partly because of their greater potential to influence elections (Kopchick et al., 2022). This emphasis on numerical and geographical advantages echoes earlier research that attributes economic sanctions primarily to politicians' pursuit of popular support and electoral advantage (Whang, 2011). In short, according to these accounts, diaspora influence derives either from members' status as voters or from their ability to influence the rest of the electorate.

The Uyghur diaspora in the U.S., however, lacks the numerical strength or electoral influence emphasized in this literature. It numbers only around 8,000 to 10,000,[15] despite being somewhat concentrated in the greater Washington, D.C. metropolitan area and especially in Virginia. Meanwhile, some Uyghurs are recent refugees or immigrants who fled China's intensified repression in recent years and may not have become naturalized citizens yet. The Uyghur issue was not highly salient among the American public either: only 3% of respondents mentioned Uyghurs when asked in an open-ended setting about what they think of China.[16] It is unlikely that the

[15]Uyghur American Association, "Who Are the Uyghurs?", Uyghur American Association website, accessed February 4, 2026, https://www.uyghuraa.org/who-are-the-uyghurs

[16]Shannon Schumacher and Laura Silver, "In Their Own Words: What Americans Think About China," Pew Research Center, March 4, 2021, https://www.pewresearch.org/short-reads/2021/03/04/in-their-own-words-what-americans-think-about-china/.

Uyghur diaspora can exercise sufficient leverage in elections to extract major policy concessions from politicians.

Institutional embeddedness in elite-driven foreign policymaking

Instead of focusing on electorate-driven influence, I situate diaspora influence within the elite-centric context of U.S. foreign policymaking, characterized by "relatively small networks of elites shielded behind institutions meant to stave off outside influence" (Alshaibi, 2024; Saunders, 2022). Foreign policy elites confront what Alshaibi (2024) calls an "epistemic hole": they lack specialized knowledge about international affairs or region-specific issues and are therefore dependent on expert input. This dependence creates opportunities for those who supply information to shape policy. Emphasizing the highly uncertain, complex, and ill-defined nature of foreign policymaking, Jost et al. (2024) show that advisors' own dispositions shape presidents' preferences and foreign policy outcomes through the analyses and policy recommendations they share. In the legislative branch, lawmakers face significant constraints on their time, resources, and expertise and thus rely on lobbyists to provide "legislative subsidies" in the form of issue expertise to aid their legislative efforts (Hall and Deardorff, 2006). From this perspective, diaspora groups' ability to influence foreign policymaking is rooted in their capacity to provide information that elites otherwise lack, particularly first-hand accounts of human rights abuses and assessments of what members of the diaspora or their homeland communities consider legitimate policy responses.

That civil society groups can shape foreign policymaking through information gathering and expert testimony is not new: the role of international non-governmental organizations (INGOs) like Amnesty International in ushering in the "information revolution" in human rights since the 1970s has been well documented (Cmiel, 1999). What is missing from this information-provision account is how civil society organizations, including diaspora groups, secure access to institutional platforms, such as congressional hearings, to convey that information in the first place (Ban, Park, and You, 2023). While many organizations can provide information on a particular topic, why are certain groups chosen to give testimony over others? And at a critical juncture, when

policy divergence becomes possible and agents' choices are more likely to affect policy outcomes (Capoccia and Kelemen, 2007), why are groups with a particular policy stance privileged over their counterparts and given access to shape policy in their favor?

I argue that Uyghur diaspora and other human rights organizations supportive of import bans were able to secure access to formal platforms and offer policy recommendations because of their longstanding institutional embeddedness prior to the recent Uyghur crisis. Following Granovetter (1985), I emphasize how lobbying and information-provision activities are embedded within networks of personal relations that foster trust and the exchange of reliable information. Similarly, Montal, Pauselli, and Urzúa (2026) emphasize how repeated interaction leads policymakers to regard civil society actors as credible partners and their information as reliable.

For more than two decades before the UFLPA was introduced, Uyghur actors and groups were already engaging in congressional outreach and testifying at hearings, even though the Uyghur issue received limited attention. Past engagement begets further invitations as trust and credibility accrue. Through this process, actors within the same Uyghur or human rights organizational networks gradually developed enduring ties with like-minded legislators and staff. When unanticipated policy shocks occur, such as the intensified persecution of Uyghurs beginning in 2017, demand for credible information surges and policy divergence becomes possible. Civil society actors can then draw on these established ties to increase their chance of further participating in institutional platforms and advance their preferred policy solutions, exercising influence disproportionate to their limited resources and electoral leverage. This institutional embeddedness provides the relational infrastructure through which civil society actors effectively transmit informational subsidies to policymakers.

Process tracing and the triangulation of evidence

I conduct process-tracing in an *explaining-outcome* fashion (Beach and Pedersen, 2016) to examine the development and passage of the UFLPA. I pay attention to the sequence of events, networks of actors, and the historical and institutional contexts in which they operate, while distilling

theoretical mechanisms that are portable and generalizable enough to offer insights into other rights-based trade restrictions. I discipline my within-case inferences by assessing my proposed mechanisms against existing hypotheses and drawing on temporal variation within the case whenever possible (Ricks and Liu, 2018). As previous sections have shown, for example, executive actions preceding the bill during the Trump administration cast doubt on the congressional assertiveness account, while organized labor's longstanding advocacy for a forced-labor ban calls for a fuller account of coalitional politics that goes beyond protectionism.

Empirically, I draw on two main sources of data: elite interviews and congressional hearing transcripts. First, I conducted 15 semi-structured elite interviews with policymakers and interest group representatives involved in the UFLPA's passage. Elite interviewing is well suited to process-tracing in single-case settings (Kay and Baker, 2015). My interviewees include senior officials and staffers from the executive branch (the State Department and the National Security Council) and Congress, as well as representatives from industry associations and Uyghur advocacy organizations. Sampling was purposive and non-random because the goal was not to draw inferences about foreign policy elites in general but to reconstruct the specific legislative process and prioritize influential actors (Tansey, 2007). I therefore selected interviewees based on their institutional positions and likely involvement in that process.[17]

In total, I contacted 27 potential interviewees, of whom 15 agreed to participate—a participation rate of more than 50 percent. All interviews were conducted on a not-for-attribution basis: given that many interviewees continue to hold positions in Congress, the executive branch, or their respective organizations, anonymity was essential to eliciting candid and detailed accounts of internal political dynamics and lobbying strategies. All but one of the interviews were conducted in person in Washington, D.C., in July 2025. The interviews were semi-structured around a few standardized questions: what explains the broader shift in the China consensus and the rise in

[17]I first identified the bill's main sponsors and co-sponsors and targeted senior policy staff in their offices with China or Asia portfolios. I also approached senior staff from relevant committees, including the House Foreign Affairs Committee, the Senate Foreign Relations Committee, and the Congressional-Executive Commission on China, who were active during the 2020–2021 period. On the interest-group side, I targeted industry associations that lobbied on the UFLPA, as identified through lobbying disclosures, as well as Uyghur diaspora and human rights organizations central to the advocacy campaign.

China-related legislative activity in Washington; what explains the passage of the UFLPA in particular; and what lobbying strategies the different interest groups involved pursued. Beyond these anchors, I tailored follow-up questions to interviewees' institutional positions and specific responses.

Second, I compile all transcripts from Uyghur-related congressional hearings available in the ProQuest Congressional database through December 2021, when the bill was passed.[18] This yields 37 congressional hearings and roundtables (including 11 staff-led roundtable meetings), ranging from July 25, 1996, to November 17, 2021. I carefully read through all the transcripts, paying attention to how actors frame the Uyghur issue and justify what they consider the appropriate legislative response.

In addition, I construct a new dataset of all witness-legislator pairs that appeared at the same hearing. The hearing transcripts record all witnesses' identities and professional affiliations. I then identify members of Congress who were present at each hearing based on whether they delivered remarks or asked witnesses a question, rather than relying on the committee roster. A tie is recorded for each witness-legislator pair appearing at the same hearing. This process yields a total of 686 unique time-specific witness-legislator ties. Thirty-two witness-legislator pairs have more than one tie, meaning that they appeared together at two or more hearings. The highest number of co-appearances in this dataset is five, between Rebiya Kadeer—a prominent Uyghur leader who was imprisoned in China before her release to the U.S. and later served as president of the World Uyghur Congress—and Chris Smith, a Republican representative from New Jersey and a longstanding advocate for human rights in China, particularly religious freedom. Analyzing these recurrent relationships between witnesses and legislators allows me to reconstruct the institutional embeddedness of diaspora and civil society actors over time and the rich interconnectedness of the legislative coalition.

To further contextualize and triangulate the data obtained from elite interviews and hearing transcripts, I supplement these materials with several external data sources, particularly novel

[18] I use the following search criteria: all published hearings that mention Xinjiang OR Uyghur* OR Uighur* in their title or subject (as defined by ProQuest Congressional's own classification).

quantitative data on business lobbying expenditures on the UFLPA, an original compilation of congressional floor speech data, and public statements issued by government agencies and industry associations. This multi-source strategy allows me to reconstruct the political contestation among civil society actors, legislators, and businesses that no single source of data can fully capture.

From corporate due diligence to a presumptive import ban

The origins of the UFLPA as a legislative proposal can be traced to the October 17, 2019 hearing on "Forced Labor, Mass Internment, and Social Control in Xinjiang," held by the Congressional-Executive Commission on China (CECC). An interbranch agency with bicameral, bipartisan leadership, CECC was formed in December 2000, when Congress authorized Permanent Normal Trade Relations (PNTR) status for China and paved the way for its accession to the World Trade Organization. The commission was seen "almost as a bone thrown to the losers of the trade relations fight," including the human rights coalition led by Nancy Pelosi.[19] But its mandate to monitor human rights and the rule of law in China includes a requirement to "seek out and maintain contacts with nongovernmental organizations."[20] Its hearings and staff-led roundtables have thus become important platforms for civil society actors to inform policy debates. Between 2018 and 2021, at the height of the Uyghur crisis, CECC alone held six hearings and one roundtable on the Uyghurs.

The October 2019 hearing was the first to examine forced labor in Xinjiang as a standalone subject. By the second half of 2019, researchers had documented forced labor as a systemic, organized feature of the Uyghur detention centers. Two witnesses at the hearing conducted some of the most influential research: Adrian Zenz, a senior fellow at the Victims of Communism Memorial Foundation,[21] and Amy Lehr, director of the Human Rights Initiative at the Center for

[19]Haley Byrd Wilt, "How the Uyghur Forced Labor Prevention Act Became Law," *The Dispatch*, June 20, 2022, https://thedispatch.com/article/how-the-uyghur-forced-labor-prevention-b18/.

[20]Congressional-Executive Commission on China (CECC), "Legislative Mandate," sec. 302(e), accessed November 2, 2026, https://www.cecc.gov/about/legislative-mandate.

[21]Adrian Zenz, "Beyond the Camps: Beijing's Long-Term Scheme of Coercive Labor, Poverty Alleviation and Social Control in Xinjiang," *Journal of Political Risk* 7, no. 12 (December 2019), https://www.jpolrisk.com/beyond-the-camps-beijings-long-term-scheme-of-coercive-labor-poverty-alleviation-and-social-control-in-xinjiang/.

Strategic and International Studies (CSIS).[22] The hearing was led by CECC chair Jim McGovern, a Democratic representative and chairman of the House Rules Committee, and co-chair Marco Rubio, a Republican senator serving on the Senate Foreign Relations and Intelligence Committees. Both became sponsors of the UFLPA. Six of the eight members of Congress who attended became original cosponsors in both the 116th and 117th Congresses, including Chris Smith and Democratic senator Jeff Merkley of Oregon.

A central tension in the witnesses' testimony—one that later shaped the import ban proposal—concerned corporate due diligence. Normally, businesses can address forced labor risks by tracing inputs along supply chains, inspecting suppliers' workplaces, and interviewing workers. Yet Lehr's CSIS report noted that "traditional third-party audits are highly unlikely to be effective in identifying forced labor in Xinjiang,"[23] owing to the opaque and oppressive nature of the internment camps and Chinese authorities' refusal to allow independent audits. Her recommendations nevertheless urged companies to *strengthen due diligence* through new techniques, such as examining Chinese-language sources and using DNA markers to identify Xinjiang cotton.

By contrast, Nury Turkel, a longstanding Uyghur American advocate and board chair of the Uyghur Human Rights Project, put forward a more forceful argument: "Given this system of intimidation and terror… corporate supply-chain *due diligence is impossible*."[24] The upshot was that "no company can provide credible assurance that products sourced in Xinjiang qualify for legal import into the United States." The appropriate legislative response, he argued, was to "shift the burden of proof to companies that wish to import products sourced in Xinjiang."[25] By calling for businesses to demonstrate that their goods were free of forced labor, advocates could claim the

[22]Amy K. Lehr and Mariefaye Bechrakis, *Connecting the Dots in Xinjiang: Forced Labor, Forced Assimilation, and Western Supply Chains* (Washington, DC: Center for Strategic and International Studies, October 2019), https://csis-website-prod.s3.amazonaws.com/s3fs-public/publication/Lehr_ConnectingDotsXinjiang_interior_v3_FULL_WEB.pdf.

[23]Lehr and Bechrakis, *Connecting the Dots in Xinjiang*, 11.

[24]CECC, *Forced Labor, Mass Internment, and Social Control*, 46 (prepared statement of Nury Turkel).

[25]The earliest explicit argument I could locate for shifting the burden of proof to companies sourcing from Xinjiang appears in Worker Rights Consortium (WRC), *Factory Assessment: Hetian Taida Apparel Co., Ltd. (China)—Findings, Recommendations, and Status*, June 24, 2019, 5, https://www.workersrights.org/app/uploads/2020/02/WRC-Report-on-Hetian-Taida-China-June-2019.pdf. The report was cited in Nury Turkel's written testimony and in the CECC's March 2020 staff research report.

moral high ground without explicitly demanding a ban that might provoke backlash. Yet shifting the evidentiary burden effectively created a presumptive ban—one that firms would struggle to overcome precisely because of the difficulty of conducting due diligence.

The witnesses' initial proposals stopped short of a sweeping ban on *all* imports from Xinjiang. Lehr recommended that "the apparel industry should consider instituting a ban on knowingly sourcing Xinjiang cotton," citing the voluntary industry and civil society boycott of Uzbek cotton in the 2010s as a precedent. Turkel's written statement called for the government to ban imports of only "cotton, textiles, and garments originating from Xinjiang." During the Q&A session, however, McGovern put a broader question to all witnesses:

> "I am just sitting here listening, as we all are, to the expert testimony here today on the widespread use of forced labor in Xinjiang and the difficulties in determining whether or not a particular factory is using forced labor… I just want to ask; *do you believe that the U.S. should ban all imports from Xinjiang?*" (emphasis added) [26]

As a senior congressional staffer recalled, the CECC chair and staff did not yet have a sweeping import ban bill in mind: "I wrote that question I thought about in the middle of the hearing in pen and I handed it to McGovern."[27] Turkel answered unequivocally: "Yes. I would say in one word, yes," adding that the ban should extend globally. Lehr found it a "hard question" but said companies "need to really step up what they are doing." Both Zenz and Michael Posner, a former DRL official, argued that, at minimum, the burden of proof should shift to companies. Zenz added that "a general ban on low-skilled, high-labor-intensive manufacturing items from Xinjiang is actually not unfeasible."

These questions of due diligence, burden of proof, and the scope of import restrictions found a legislative resolution in the UFLPA, introduced alongside a CECC research report at a follow-up roundtable on March 11, 2020. The report adopted the position that "due diligence in Xinjiang is not possible."[28] Merkley made the same concern explicit when introducing the bill as a cosponsor:

[26]CECC, *Forced Labor, Mass Internment, and Social Control*, 21 (question by James P. McGovern).
[27]Interview 2.
[28]CECC, *Global Supply Chains, Forced Labor, and the Xinjiang Uyghur Autonomous Region*, staff research report,

"[U]ntil we can do *due diligence* and ensure that supply chains are not, in fact, comprised of enslaved workers… we should do everything possible to ensure that our nation and the American people are not complicit participants in the abuse of their human rights."[29] Rubio also emphasized that "the core of it is that it shifts the burden of proof to companies that insist on producing in this region."[30]

The bill created a "rebuttable presumption" that *all* goods produced in the region are made with forced labor, unless importers provide "clear and convincing evidence" to the contrary. It thus incorporated the shift in the burden of proof championed by most witnesses at the October 2019 hearing. The mechanism drew directly on a precedent concerning imports from North Korea in the 2017 Countering America's Adversaries Through Sanctions Act (CAATSA). Another senior CECC staffer identified this precedent and adapted it for the bill, illustrating how civil society actors and legislative staff pooled their expertise to shape the legislation. Placing compliance costs on private firms through the rebuttable presumption offered a further advantage: the Congressional Budget Office estimated that the bill would have insignificant effects on revenues and direct spending, with reporting requirements costing only $1 million over 2021-2026.[31] This negligible fiscal footprint shielded the bill from potential criticism that it would impose substantial costs on taxpayers.

Institutional embeddedness and access to Congress

The genesis of the UFLPA can, in one sense, be read as evidence of the value of information subsidies supplied by human rights and diaspora actors through congressional hearings. A senior staffer highlighted their value to lawmakers and staff who face resource constraints:

> "[Civil society] groups have to always do a good job in terms of making it easy

March 2020, 7, https://www.cecc.gov/sites/evo-subsites/cecc.house.gov/files/evo-media-document/CECC%20Staff%20Report%20March%202020%20-%20Global%20Supply%20Chains%2C%20Forced%20Labor%2C%20and%20the%20Xinjiang%20Uyghur%20Autonomous%20Region.pdf.

[29] *Global Supply Chains, Forced Labor, and the Xinjiang Uyghur Autonomous Region: Roundtable before the Congressional-Executive Commission on China*, 116th Cong., 2d sess., March 11, 2020, 5–6 (statement of Jeff Merkley), https://www.govinfo.gov/content/pkg/CHRG-116jhrg40452/pdf/CHRG-116jhrg40452.pdf.

[30] CECC, *Global Supply Chains*, roundtable, March 11, 2020, 3–4 (statement of Marco Rubio).

[31] Congressional Budget Office, *Cost Estimate: S. 65, Uyghur Forced Labor Prevention Act, as Passed by the Senate on July 14, 2021*, July 26, 2021, https://www.cbo.gov/publication/57380.

> for the staff to get things done…As an outside organization, you've got to get the justification together…the rhetoric together, the reasons why things are happening, the data…Good organizations do that and basically give it to Congress and say *here's the information gift-wrapped, do something with it*…[Staff] don't have time to focus on any of this stuff. So you have to help them and NGOs play an absolutely pivotal role in all of that." (*emphasis added*)[32]

But this information-provision account has one important limitation: it overlooks the politics of how witnesses were chosen in the first place. Why was Turkel, among many Uyghur or human rights advocates, invited to testify at the October 2019 hearing and advance his policy arguments? In fact, he appeared at three congressional hearings between 2018 and 2021, the first in September 2018 and the second at CECC in October 2019. Following these two hearings, Speaker Pelosi appointed him in May 2020 to the U.S. Commission on International Religious Freedom (USCIRF) "to be a powerful voice for the Uyghur people" as the first Uyghur-American commissioner.[33] After this appointment, Turkel was invited to testify again before the House Foreign Affairs Committee in May 2021 to push for the UFLPA. How was he able to gain repeated institutional access to shape U.S. policymaking on the Uyghurs?

To understand the rise of Uyghur advocates like Turkel at this critical juncture, when agents' choices were more likely to shape the outcome (Capoccia and Kelemen, 2007), we must examine their institutional embeddedness before pivotal events like the October 2019 hearing. Figure 1 maps the relationships between witnesses and lawmakers who co-appeared in at least two Uyghur-related congressional hearings recorded in the ProQuest Congressional database. Prior interactions allow witnesses to establish the credibility of the information they supply and build trust with lawmakers and staff, making future invitations more likely. Repeated invitations and co-appearances may thus reflect witnesses' established reputations and relationships with lawmakers' offices, which can make those offices more receptive to their policy arguments and

[32]Interview 2.

[33]Nancy Pelosi, "Pelosi Floor Speech in Support of the Uyghur Human Rights Policy Act," press release, May 27, 2020, https://speakeremeritapelosi.house.gov/newsroom/52720.

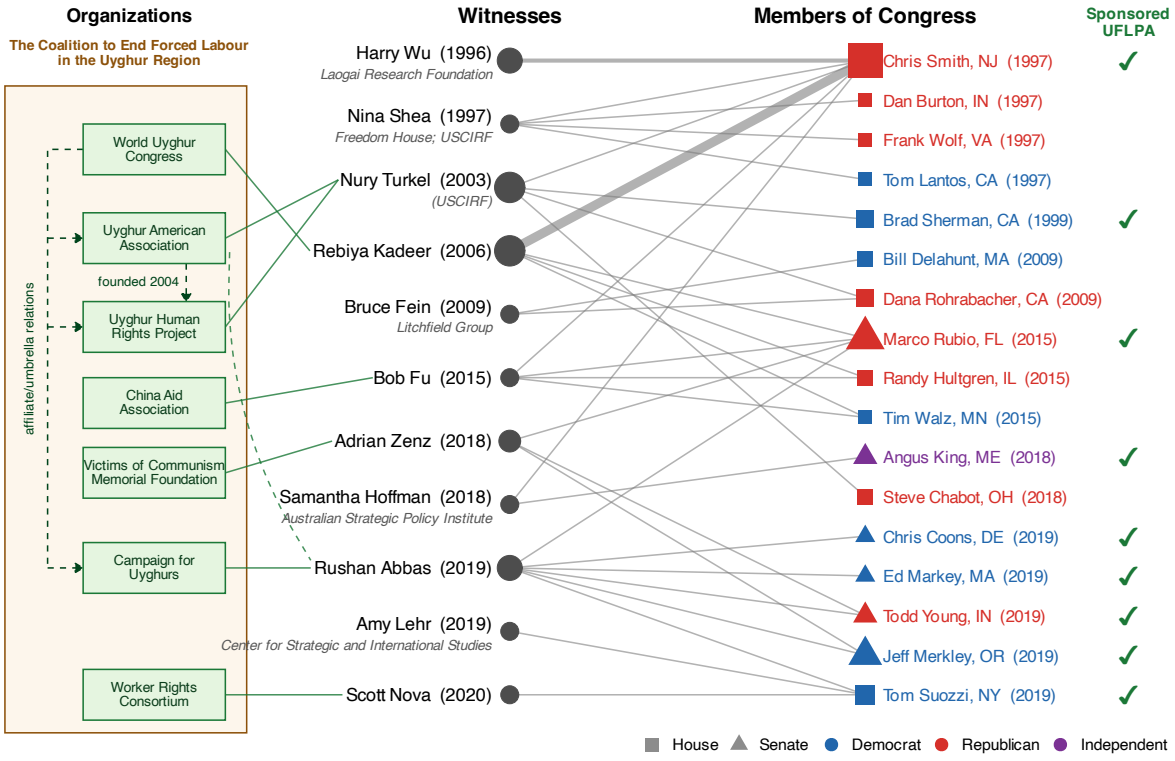


Figure 1: Recurring witness–legislator ties in Uyghur-related congressional hearings. The network includes witnesses and members of Congress who co-appeared at two or more of the 37 Uyghur-related hearings and roundtables in the dataset. Edge width is proportional to the number of hearings a pair shared, and node size to the total number of hearings each actor attended. Within each column, actors are ordered by their first appearance in any hearing or staff-led roundtable, with the year in parentheses. The left column links witnesses to their organizations. Check marks denote sponsors or cosponsors of the UFLPA.

recommendations.

Turkel's congressional engagement long predated October 2019. He appeared at staff-led CECC roundtables in March 2003 and February 2009. His first formal hearing before lawmakers was in June 2009, when a House Foreign Affairs subcommittee considered whether Uyghur detainees at Guantanamo Bay should be paroled into the United States. The subcommittee's chairman, Bill Delahunt, referred to Turkel as a "friend." By the time he testified before another House Foreign Affairs subcommittee in September 2018, as the Uyghur crisis unfolded, Turkel had already appeared before Congress at least three times. His return to CECC in October 2019 thus followed years of engagement with congressional bodies and lawmakers.

These efforts of congressional outreach extended beyond any individual advocate. Turkel

belonged to a wider network of Uyghur, human rights, and labor rights actors and organizations, as Figure 1 shows. Many who helped advance the UFLPA participated in the Coalition to End Forced Labour in the Uyghur Region, launched in July 2020. One Uyghur activist recalled the origins of the coalition:

> "there's not a single organization that we can say it's perfect. Not Human Rights Watch, not Amnesty International. They're always lacking something. They're either lacking expertise or Uyghur impacted communities or lacking like people who can speak the language, who can do the research or media or campaigning."[34]

Uyghur groups and labor rights groups thus formed the coalition to pool resources and expertise across civil society. Its steering committee included the Uyghur Human Rights Project (represented in Congress by Nury Turkel), Campaign for Uyghurs (Rushan Abbas), Worker Rights Consortium (Scott Nova), and other anti-slavery and labor rights groups, including the AFL-CIO. The coalition expanded to include the Victims of Communism Memorial Foundation (Adrian Zenz), China Aid Association (Bob Fu, an activist-pastor aligned with the Christian right), and hundreds of endorsing organizations worldwide.

The institutional embeddedness that preceded the UFLPA thus extended across a network of overlapping organizations. Earlier efforts included those of Rebiya Kadeer, former president of the Uyghur American Association (2006–2011) and World Uyghur Congress (2006–2017), who appeared at six congressional hearings between 2006 and 2016. Part of Turkel's importance may lie in his role in connecting the political capital and relationships built by Uyghur groups since the early 2000s to advocacy efforts almost two decades later. This longstanding embeddedness, at both individual and organizational levels, helped advocates gain access to hearings and other institutional positions during the Uyghur crisis from 2018 onward. These platforms allowed them to provide information, present policy arguments, and shape legislative responses such as the UFLPA, drawing on relationships established well before the crisis.

[34]Interview 10, conducted by the author in person, Washington, DC, July 17, 2025.

International religious freedom and executive sanctions

"The CECC does not have a great record of passing legislation like that," a senior congressional staffer acknowledged, referring to the UFLPA as the "biggest trade bill since PNTR," which the staff did not expect to pass.[35] The bill's unexpected success raises the question of how its proponents assembled a coalition capable of overcoming multiple institutional obstacles, including committee review, Senate opposition, and a potential presidential veto. I highlight how the bill's proponents reframed the Uyghur issue to connect religious repression abroad *with* forced labor inside American supply chains. This framing decisively shaped the coalition by bridging the right's concerns about religious freedom and forced abortion with the pro-labor left's concerns about international labor standards and the competitive disadvantages facing American workers. I show how this bridging helps explain important executive precursors to the bill, its advancement through the committee stage, and its eventual passage despite resistance within the Democratic-led executive.

To understand how the framing of the Uyghur issue evolved in American politics, I compile congressional floor speeches recorded in the Congressional Record between 1996 and 2024, using the parsing tool developed by Judd et al. (2017). I split each speech into sentences and retain those explicitly discussing "Uyghurs" or "Xinjiang." This yields a dataset of 1,838 sentences by 202 lawmakers over the period. I further classify the sentences according to whether they mention "forced labor," "religion," or "faith." Figure 2 traces changes in congressional attention to the Uyghurs and in the framing of the issue.

Traditionally, the Uyghur issue was understood primarily in terms of religious freedom. Figure 2 shows that, in the late 1990s, Republicans raised the issue more frequently than Democrats. When Republicans did so, they often used words such as "religion" or "faith." One of the earliest champions of the cause was Chris Smith of New Jersey, chairman of the House Subcommittee on International Operations and Human Rights. His Catholic faith informed his longstanding advocacy for religious freedom and opposition to abortion. Between 1997 and 1999 alone, Smith chaired three subcommittee hearings featuring the Uyghur issue and Uyghur witnesses. Through-

[35] Interview 2.

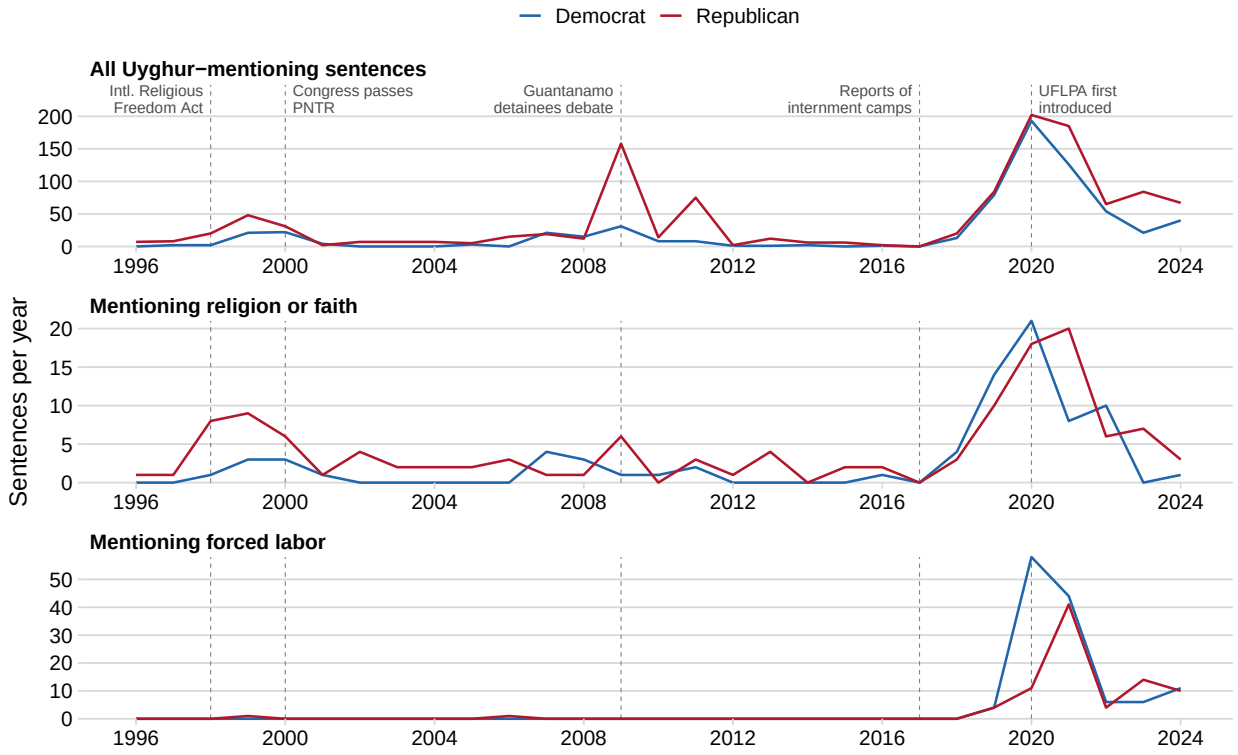


Figure 2: Annual counts of congressional floor sentences mentioning Uyghurs or Xinjiang, by party, 1996–2024: all mentions (top), mentions of "religion" or "faith" (middle), and mentions of "forced labor" (bottom). Dashed lines mark selected events.

out these hearings, Smith emphasized the Uyghurs' Muslim identity, referring to the witness as the "Muslim Uyghur" or the people as "Uyghur Muslims," alongside other victims of religious persecution such as "Tibetan Buddhists." He also highlighted forced sterilization and abortion against Uyghurs, consistent with his pro-life politics.

Smith represented broader congressional efforts seeking to elevate the role of international religious freedom in U.S. foreign policy, an effort exemplified by the Wolf-Specter Freedom from Religious Persecution Act of 1997. That bill was eventually replaced by the International Religious Freedom Act (IRFA) of 1998, which greatly strengthened the religious freedom machinery within the U.S. government. It created an Ambassador-at-Large within the State Department, annual reporting on countries worldwide, and the bipartisan United States Commission on International Religious Freedom (USCIRF)—to which Nury Turkel was appointed two decades later.

At the same time, Smith was part of the coalition opposing PNTR for China, which invoked

China's human rights abuses to challenge the Clinton administration's trade agenda. In this context, it is not surprising that congressional interest in the Uyghur issue waned after the PNTR battle concluded in 2000. As Figure 2 shows, congressional attention remained limited throughout the 2000s and much of the 2010s, apart from the 2008–2009 debate over whether Uyghur detainees at Guantanamo Bay should be paroled into the United States.[36]

Against this background, the Uyghur issue entered the first Trump administration's policy agenda in 2017 primarily through the lens of international religious freedom. Key advocates within the administration included Vice President Mike Pence and Secretary of State Mike Pompeo, two figures closely aligned with the evangelical Christian right. The importance of international religious freedom to the administration was evident in the White House's appointment of a Special Adviser on International Religious Freedom to the National Security Council (NSC) staff in February 2020—a position called for by the IRFA of 1998 but left unfilled for more than two decades.[37]

Pompeo's replacement of Rex Tillerson as Secretary of State in early 2018 coincided with Trump's disappointment over trade negotiations with China. "When that trade deal did not come through the way that the President intended it to," a former senior NSC staffer recalled, "all of a sudden we [the human rights advocates] kind of got the green light… And that that's really when you saw Pompeo and Pence and others kind of start pushing on the Uyghur genocide."[38] Shortly after his appointment, Pompeo and Ambassador-at-Large for International Religious Freedom

[36]Representatives Bill Delahunt (D-MA) and Dana Rohrabacher (R-CA) were leading advocates in this episode, holding three hearings through their Subcommittee on International Organizations, Human Rights, and Oversight between June and July 2009 alone. They argued that the Bush administration had accommodated China by designating the East Turkestan Islamic Movement (ETIM) as a terrorist organization in 2002 in exchange for China's support for U.S. counterterrorism objectives. They also noted that Chinese delegates were allowed to enter Guantanamo Bay to interrogate the Uyghur detainees in 2002, while congressional requests to meet with the detainees were denied. The Uyghur detainees thus became a vehicle for the two congressmen to challenge the executive's intelligence practices and cooperation with China amid what they viewed as inadequate congressional oversight. This episode can be read as evidence of the traditional congressional assertiveness account. The 22 Uyghur detainees were eventually resettled in third countries. Frank Wolf of Virginia, despite his longstanding support for religious freedom, was a leading opponent of resettling the detainees—whom he described as terrorists—in the United States and especially his home state.

[37]U.S. Commission on International Religious Freedom, "Key IRF-Related Positions", December 2024, 2, https://www.uscirf.gov/sites/default/files/2024-12/2024%20IRF%20Related%20Appointments%202025.pdf.

[38]Interview 12, conducted by the author online, July 18, 2025.

Sam Brownback hosted the inaugural Ministerial to Advance Religious Freedom in Washington, DC, in July 2018. As part of the summit, the State Department singled out China, alongside Iran and Burma, for a separate statement of concern. The statement noted "significant restrictions on religious freedom in China," and its second paragraph specifically addressed worsening repression and arbitrary detention of Uyghurs, highlighting, first and foremost, "undue restrictions on freedom of religion."[39] The Uyghur issue thus occupied a prominent place in Pompeo's use of international religious freedom to challenge China in the bilateral relationship early in his tenure.

The connection between religious freedom and economic sanctions became explicit in the Executive Order on Advancing International Religious Freedom (E.O. 13926), issued on June 2, 2020.[40] It declared that "Religious freedom for all people worldwide is a foreign policy priority of the United States." It further encouraged the State and Treasury Departments to "develop recommendations to prioritize the appropriate use of economic tools to advance international religious freedom," including Global Magnitsky sanctions against individuals or entities responsible for abuses. Agencies such as the Bureau of Industry and Security (BIS) at the Commerce Department and CBP had already used the Entity List and WROs to address human rights abuses in Xinjiang. Their sanctioning further intensified after the executive order, with additional agencies, including the Treasury Department's Office of Foreign Assets Control (OFAC), joining efforts to impose asset and visa restrictions on individuals or entities.[41] The executive order offered a common framework, organized around international religious freedom, to justify and coordinate economic sanctions across executive agencies. The Uyghur crisis both motivated this effort and provided a testing ground for deploying the arsenal of economic sanctions to advance religious freedom.

Perhaps Pompeo's most significant action, in both policy and symbolic terms, was his des-

[39]U.S. Department of State, "Ministerial to Advance Religious Freedom Statement on China," July 26, 2018, https://2017-2021.state.gov/statements-of-concern__trashed/ministerial-to-advance-religious-freedom-statement-on-china/.

[40]Executive Order No. 13926, "Advancing International Religious Freedom," June 2, 2020, secs. 1(a), 6, 85 Fed. Reg. 34951, 34951–52 (June 5, 2020), https://www.federalregister.gov/documents/2020/06/05/2020-12430/advancing-international-religious-freedom.

[41]In a parallel legislative development, the Uyghur Human Rights Policy Act of 2020 was passed in Congress in May 2020 and signed into law by Trump on June 17, 2020, requiring the President to identify and sanction individuals responsible for human rights abuses in Xinjiang.

ignation of the persecution of Uyghurs by Chinese authorities as "genocide and crimes against humanity"[42] on January 19, 2021, his last full day in office. The designation faced internal resistance within the State Department: "a legal office kept pushing back on that word," the former senior NSC staffer described.[43] In an op-ed released that day, Pompeo linked the designation to his pro-life position:

> "Of particular repugnance to *pro-life Americans*—and key in my determination that the atrocities in Xinjiang rise to the level of genocide—is the Communist Party's efforts to stop Uighur women from giving birth via *forced abortion and sterilization*."[44] (emphasis added)

Frame bridging and the building of a bipartisan coalition

While officials aligned with the religious right had advanced important executive precursors to the UFLPA, the bipartisan coalition behind the bill was not complete until forced labor became part of the framing in addition to religious persecution. Figure 2 shows a reversal of Democrats' historically limited attention to the Uyghur issue: their discussion surged from 2018 onward, rivaling that of Republicans. Unsurprisingly, Democrats frequently highlighted forced labor, but they also adopted the religious framing, emphasizing the persecution of Uyghurs for their religion or faith. The rhetoric across parties became indistinguishably similar.[45] The Uyghur forced labor frame successfully connected the persecution of an ethnic and religious minority to forced labor in U.S. supply chains, helping the issue gain a level of bipartisan support it had not previously received.

The forced labor frame gave lawmakers a way to connect the Uyghur issue to economic concerns in their own districts. This connection was prominent at the September 17, 2020 hearing of the

[42]Pompeo, "Determination of the Secretary of State on Atrocities in Xinjiang."

[43]Interview 12.

[44]Michael R. Pompeo, "Genocide in Xinjiang," *The Wall Street Journal*, January 19, 2021, https://www.wsj.com/opinion/genocide-in-xinjiang-11611078180.

[45]Statistical tests using word embedding regressions (Rodriguez, Spirling, and Stewart, 2023) confirmed this: lawmakers' rhetoric became indistinguishable by party after 2017. Results are available on request owing to space constraints.

House Ways and Means Subcommittee on Trade, titled "Enforcing the Ban on Imports Produced by Forced Labor in Xinjiang."[46] Labor groups were prominently featured among the witnesses, including Cathy Feingold, International Director at the AFL-CIO. Feingold noted the AFL-CIO's petition to CBP for a regional WRO and its strong support for the UFLPA. Indeed, McGovern had specifically thanked the AFL-CIO in his opening statement at the March 2020 CECC roundtable where the UFLPA was first introduced.[47] Scott Nova of the Worker Rights Consortium, who had also testified at that roundtable, appeared at the September hearing as well.

Subcommittee members from both parties linked forced labor in Xinjiang to its adverse effects on workers and industries in their districts. Pascrell of New Jersey (D) argued: "Forced labor is also terrible for the American worker, by making them compete against exploited labor… My district has been impacted." Nunes of California (R) noted that "coming from California, we actually grow a lot of high-quality cotton" and highlighted the importance of supply chain transparency. Holding of North Carolina (R) emphasized that "North Carolina is the proud home to the largest textile industry in the country."

Lawmakers also asked Feingold to explain the economic implications for their home states. Kildee of Michigan (D) asked whether she might "help me by translating, in economic terms, what this means to… an auto worker in my hometown." Sewell of Alabama (D) similarly asked about "the ramifications for American workers if we do not fully address the human rights abuses against the Uyghur people." Feingold, in turn, explained how China's model of weak labor protections could affect the American economy and its workers:

> "You had supply chains leave the country. Companies no longer were paying taxes there. It affected the revenue base. It affected the ability of working people to have a decent job, a decent community. And so we began to see a system of *labor arbitrage*,

[46] *Enforcing the Ban on Imports Produced by Forced Labor in Xinjiang: Hearing before the House Committee on Ways and Means, Subcommittee on Trade*, 116th Cong., 2d sess., September 17, 2020, Serial No. 116–56, https://democrats-waysandmeans.house.gov/sites/evo-subsites/democrats-waysandmeans.house.gov/files/documents/Enforcing%20the%20Ban%20on%20Imports%20Produced%20by%20Forced%20Labor%20in%20Xinjiang%20Hearing%20Transcript.pdf

[47] CECC, *Global Supply Chains*, roundtable, March 11, 2020, 3 (opening statement of James P. McGovern): "I want to thank the many groups who are supporting this legislation, including the AFL–CIO."

> whereby companies left Michigan, went around the world looking for… low labor costs, places with low unionization rates and, often, repressive environments. China is an extreme case of this model."

Shortly after the hearing, Richard Neal, chairman of the full Ways and Means Committee, agreed to waive formal consideration of the bill to expedite its advancement. It was no small achievement for a trade bill on the scale of the UFLPA to clear this committee hurdle. One senior staffer described the committee as "very business-oriented" and said it was "very difficult to get tough policies on trade moving in that committee."[48] A senior executive at an industry association likewise described the committee as one of the "choke points" they used to lobby to weaken the bill.[49] Mobilizing a bipartisan coalition concerned about the effects of forced labor on local economies was, I argue, crucial to overcoming this obstacle. The bill passed the House on September 22, 2020, but died in the Senate in the 116th Congress.

Bipartisan leadership and final passage

Efforts to advance the bill in the 117th Congress encountered a surprising obstacle despite unified Democratic control of Congress and the presidency. The Senate passed the bill on July 14, 2021, but the House version faced resistance. The biggest political obstacle, however, came from the Biden administration. Three interviewees attributed the delay to John Kerry, then Special Presidential Envoy for Climate, and Wendy Sherman, then Deputy Secretary of State. Their priority of addressing climate change clashed with the bill's restrictions on Xinjiang-made polysilicon necessary for manufacturing solar panels and its potential to strain diplomatic relations with China.[50] Administration officials reportedly lobbied lawmakers, including cosponsor Merkley, to slow down the bill's progress.[51] The bill thus stalled in the House despite having passed there in

[48]Interview 2.

[49]Interview 6.

[50]Interviews 3, 5, and 13, conducted by the author in person, Washington, DC, July 9, July 10, and July 18, 2025, respectively. See also Byrd Wilt, "How the Uyghur Forced Labor Prevention Act Became Law".

[51]Josh Rogin, "Congress Needs to Act on Xi Jinping's Genocide Now," *The Washington Post*, December 2, 2021, https://www.washingtonpost.com/opinions/2021/12/02/congress-needs-act-xi-jinpings-genocide-now/.

the previous Congress.

The bill's bipartisan leadership was critical to overcoming this final obstacle from the executive. One senior congressional staffer described the UFLPA as a "four-corner" bill: Rubio represented Senate Republicans, McGovern House Democrats, Merkley Senate Democrats, and Smith House Republicans.[52] This structure provided bipartisan, bicameral leadership necessary for steering the bill through multiple institutional choke points. Another senior congressional staffer noted the uniqueness of this coalition, describing Rubio and Merkley as "odd bedfellows": "in no other world would these guys sit on the same side of the table; but on this issue, there was this coalition of willing partners who saw China as a problem and who actually genuinely cared about the human rights concerns with the Uyghurs."[53]

On the Republican side, Rubio used his Senate prerogatives to put pressure on the Democratic leadership. On December 2, he held up the National Defense Authorization Act (NDAA) by blocking a "unanimous consent agreement." This must-pass legislation was already delayed by what one staffer described as Senate Majority Leader Chuck Schumer's mismanagement of floor time.[54] Rubio demanded that the UFLPA be incorporated as an amendment to the NDAA, forcing the Democratic leadership to respond. On the Democratic side, Merkley and McGovern "broke the logjam" by challenging their own party's leadership and publicly calling for the bill's advancement.[55] Merkley, for example, publicly confirmed Sherman's concerns and argued that "the administration is starting to see how strongly Republicans and Democrats in both chambers feel about this."[56] As a senior congressional staffer put it, the UFLPA coalition had "been blessed with having four very principled people that will buck their party if need be."[57]

The public, bipartisan pressure put Speaker Pelosi, described by the same staffer as "doing

[52]Interview 5.

[53]Interview 1, conducted by the author in person, Washington, DC, July 8, 2025.

[54]Interview 9, conducted by the author in person, Washington, DC, July 17, 2025.

[55]Interview 5.

[56]Ana Swanson, Catie Edmondson, and Edward Wong, "U.S. Effort to Combat Forced Labor Targets Corporate China Ties," *The New York Times*, December 23, 2021, https://www.nytimes.com/2021/12/23/us/politics/china-uyghurs-forced-labor.html.

[57]Interview 5.

the bidding of the Biden administration,"[58] in an increasingly untenable position. Even Uyghur activists took to the streets to protest against the Speaker—arguably their most important ally for decades—and condemned the delay. The Democratic leadership eventually yielded, bringing the bill to a House floor vote on December 8, 2021. The reconciled version then passed both chambers and was signed into law by Biden on December 23. Reflecting on how the bill overcame this resistance, one senior staffer emphasized Pelosi and McGovern's control over floor access as Speaker and Rules Committee Chair: if they wanted certain bills to pass, "they could because they're the ones who made sure it got on the floor." Another staffer credited Rubio: "what overcame that was the personal passion of Marco Rubio—[the UFLPA] was his big thing."[59]

But as the preceding analysis shows, these politicians' power and agency must be understood in the context of institutional histories and coalitional dynamics that their earlier actions helped create and that, in turn, conditioned their subsequent choices. Pelosi rose to national prominence through her early battles over China's MFN and PNTR status and her longstanding leadership on human rights in China. Those battles left an institutional legacy in the CECC and its bipartisan, bicameral leadership. The religious right, through figures such as Smith and later Pompeo, elevated the Uyghur issue, while the pro-labor left broadened the coalition by connecting it to domestic economic concerns that resonated across party lines. These developments had "locked in" (Pierson, 2000) leaders such as Pelosi to a trajectory that further encouraged linkages between human rights and trade sanctions. In this light, individual choices were the *proximate* cause of passage; the bipartisan coalitional politics that shaped those choices provided the more fundamental explanation.

Reputational pressure and constrained business opposition

Even as civil society actors drew on their institutional embeddedness and legislators expanded their bipartisan coalition, the UFLPA's proponents faced substantial counterlobbying from businesses reliant on imports from Xinjiang. Explaining the bill's passage therefore also requires accounting

[58] Interview 5.
[59] Interview 3.

for why businesses, traditionally influential in foreign economic policymaking, could not forestall it. I argue that the Uyghur forced labor frame constrained business mobilization through reputational pressure. As the costs of open opposition rose, businesses turned to private lobbying to weaken the bill's regulatory requirements. They secured the removal of some provisions, but their retreat from public opposition gave proponents the necessary political space to expand their coalition and advance the bill.

Lobbying disclosures offer a way to trace how firms responded as their opposition to the bill drew public scrutiny. In November 2020, news reports spotlighted efforts by major corporations and business associations, including Nike, Coca-Cola, Apple, and the U.S. Chamber of Commerce, to "water down" the bill.[60] These reports soon drew criticism from lawmakers and human rights groups. To examine corporate lobbying under growing media scrutiny, I use the LobbyView dataset (Kim, 2018) to compile lobbying activities disclosed between the first quarter of 2020 and the first quarter of 2022. I include reports mentioning both "Uyghur" and "forced labor" among their specific lobbying issues. This identifies 37 entities, including corporations, business associations, and other non-governmental organizations, that lobbied on the issue during this period.

Figure 3 presents lobbying expenditures associated with Uyghur forced labor and highlights the corporations scrutinized in the news reports. I also distinguish groups that publicly supported the UFLPA or stricter forced labor enforcement from the remaining entities.[61] Nike and Coca-Cola were among the first prominent corporations to lobby on the issue, beginning in the first quarter of 2020, when the bill was introduced. After media scrutiny in the fourth quarter, however, both ceased listing the issue in their disclosures through the first quarter of 2022. The U.S. Chamber of Commerce and Apple, also targeted by the reports, similarly disclosed lower lobbying expenditures associated with the issue.

Business lobbying continued even as several prominent firms reported less activity on the issue.

[60] Albergotti, "Apple Is Lobbying Against a Bill"; Swanson, "Nike and Coca-Cola Lobby Against Xinjiang Forced Labor Bill."

[61] Based on online records, I identified 10 groups that publicly supported stricter enforcement against forced labor or the UFLPA: AFL-CIO, American Federation of Teachers, American Foundry Society, Anti-Defamation League, Coalition for a Prosperous America, Family Research Council, FDD Action, National Cotton Council of America, National Council of Textile Organizations, and United Automobile, Aerospace & Agricultural Implement Workers.

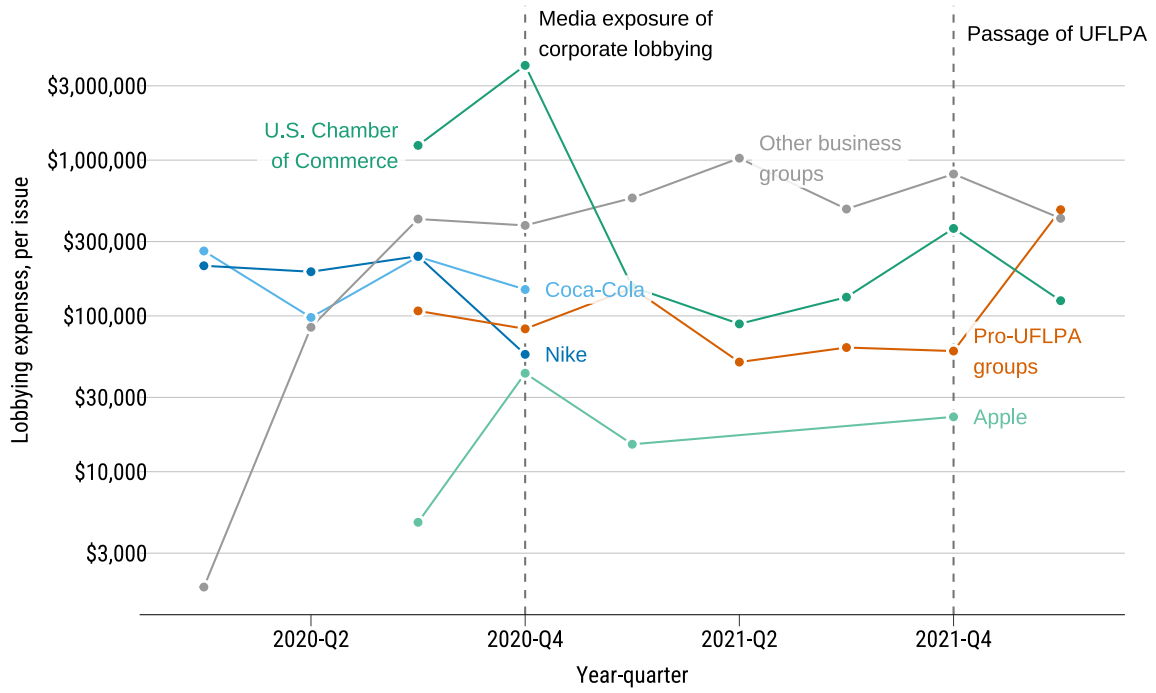


Figure 3: Lobbying expenses associated with Uyghur forced labor issues. Data are drawn from LobbyView (Kim, 2018). Expenses are normalized by the number of issues listed in each Lobbying Disclosure Act (LDA) Report. Y-axis is log-10 transformed.

Other business groups, most of which had mixed or unclear positions on the UFLPA, increased their reported lobbying expenditures in mid-2020. Among them were industry associations representing hundreds of retail and apparel companies, from small enterprises to global brands. Their growing activity even amid media scrutiny is consistent with a preference among firms for channeling their demands through industry associations to minimize attention to individual members and political backlash.

Industry associations initially voiced their objections in public. The September 2020 hearing before the House Ways and Means Subcommittee on Trade was the only hearing during the Uyghur crisis to include an industry representative as a witness, offering a rare opportunity to examine the political strategy of business associations directly. Stephen Lamar, CEO of the American Apparel & Footwear Association (AAFA), emphasized the industry's zero tolerance for forced labor. He nevertheless warned that a region-wide ban would have far-reaching consequences: "it would

wreak unending havoc to human rights, economic development, and legitimate supply chains" (emphasis added).[62] After the bill passed the House and while it was pending in the Senate, the AAFA and other industry associations wrote jointly to the chairs and ranking members of the Senate Foreign Relations, Finance, and Banking Committees. The letter directly challenged the UFLPA's rebuttable presumption as a "'guilty until proven innocent' blanket standard, directly contradicting U.S. jurisprudence and due process."[63]

By January 2021, however, industry associations had softened their public stance. The change followed the November media coverage and coincided with stepped-up executive action against imports from Xinjiang. Their public demands increasingly focused on the bill's regulatory requirements and evidentiary standards. In a January letter to Congress, the associations hedged their position, stating that they "support legislation that…enables clear and effective enforcement methods."[64] The letter neither named the UFLPA nor explicitly criticized the rebuttable presumption as the October letter had. Instead, they urged Congress to "[c]reate a clear, transparent, and evidence-based process" to facilitate compliance for companies. They called for clearer evidentiary standards for importers to demonstrate admissibility and greater public disclosure by CBP about its enforcement efforts.

A senior policy executive at a major U.S. industry association emphasized the importance of reputational costs in shaping their public positioning, as the bill's passage became increasingly likely:

> "We made the decision, rightly or wrongly—I'm sure there are some in our membership who would disagree with me—that this legislation was going to be approved in some

[62] Steve Lamar, testimony on behalf of the American Apparel & Footwear Association (AAFA), *Enforcing the Ban on Imports Produced by Forced Labor in Xinjiang*, House Committee on Ways and Means, Subcommittee on Trade, September 17, 2020, https://www.aafaglobal.org/AAFA/AAFA_News/2020_Letters_and_Comments/AAFA_Xinjiang_Testimony_September_17_2020.aspx.

[63] AAFA and other industry associations, joint letter regarding H.R. 6210 and H.R. 6270 to the chairs and ranking members of the Senate Foreign Relations, Finance, and Banking Committees, October 15, 2020, https://www.aafaglobal.org/AAFA/AAFA_News/2020_Letters_and_Comments/AAFA_Others_Express_Concerns_on_Uyghur_Legislation.aspx.

[64] AAFA and other industry associations, joint letter to House and Senate leadership urging action on the Xinjiang Uyghur Autonomous Region, January 27, 2021, https://www.aafaglobal.org/AAFA/AAFA_News/2021_Letters_and_Comments/Multi_Association_Letter_Urges_Clear_and_Decisive_Action_on_Xinjiang.aspx.

> form or another because of the momentum and the rare bipartisanship… And if we tried to oppose it, we would fail and optically for the industry that would look really bad that we were opposing legislation to fight forced labor."[65]

The executive went on to explain the industry's prior commitments against forced labor made opposition especially costly: "We did support the Trade Facilitation and Trade Enforcement Act in 2015 and 2016, which strengthened the US forced labor statute…so I felt like we couldn't go back and say, oh no, now we're okay with forced labor in this certain circumstance."

Business bargaining over the bill's provisions

Even as industry associations softened their public stance, they continued to lobby privately to weaken specific provisions. A senior congressional staffer offered this interpretation of the change in corporate strategy:

> "it's fair to say that big business has very friendly relationships with the Senate Finance Committee and the Senate Banking Committee…My guess is…that the Coca-Colas of the world decided not to try a public relations strategy against the bill because then they'd be against crimes against humanity and that's bad PR for them. So they tried the indirect approach where they just went to the senators on the Finance Committee and said you guys need to *water this down*." (*emphasis added*)[66]

The industry executive identified the Senate Finance and Foreign Relations Committees and the House Ways and Means Committee as "choke points" for lobbying. The executive credited the industry with helping to remove two provisions from House versions of the bill, recalling that "we were the ones who helped strike down" those provisions.[67] The first concerned a list of Western multinationals suspected of sourcing from suppliers linked to forced labor. The list appeared in the findings of the bill introduced in the House in March 2020. "The name and shame

[65]Interview 6.
[66]Interview 3, conducted by the author in person, Washington, DC, July 9, 2025.
[67]Interview 6.

we thought was a big concern," the executive explained, "because it was it was very unclear what evidence they would use to start naming U.S. companies or European companies. [Thus] no clear process for getting somebody off that list again." The version that passed the House in September 2020 dropped the list.[68] Instead, industry representatives proposed creating a "UFLPA Entity List" to identify Chinese entities linked to forced labor so that Western companies could avoid those suppliers, a suggestion that was incorporated in the legislation.

The second provision concerned corporate disclosures to the Securities and Exchange Commission (SEC). Successive House versions would have required companies to disclose dealings with entities linked to human rights abuses in their public financial filings. The industry executive compared the provision to the conflict minerals disclosure requirement under the 2010 Dodd-Frank Act, which applied to minerals from the Democratic Republic of the Congo. The executive described implementing that requirement as "an absolute nightmare… costing companies a lot of money to create a reporting process without having any impact on the ground."[69] The congressional staffer involved in reconciling the House and Senate bills recalled that some Republicans in both chambers also opposed the SEC requirement. Proponents dropped it as a "trade off" to reach agreement on the final bill.[70] But the final law retained the rebuttable presumption at the core of the bill and a high evidentiary standard to overcome it—importers would have to demonstrate "by clear and convincing evidence" that the goods were not made with forced labor.

The Uyghur forced labor frame constrained and reshaped business lobbying without eliminating it. Reputational costs and media scrutiny forced firms and industry associations to retreat from open contestation. They softened their public stance and even expressed support for legislative efforts to strengthen forced labor enforcement. This shift, however, did not halt their private lobbying. They continued to press for weaker regulatory requirements and greater transparency in federal enforcement. Proponents still had to negotiate with business interests and concede

[68] *Uyghur Forced Labor Prevention Act*, H.R. 6210, 116th Cong., 2d sess., as introduced in the House, March 11, 2020, https://www.govinfo.gov/content/pkg/BILLS-116hr6210ih/html/BILLS-116hr6210ih.htm, and as engrossed in the House, September 22, 2020, https://www.govinfo.gov/content/pkg/BILLS-116hr6210eh/html/BILLS-116hr6210eh.htm.

[69] Interview 6.

[70] Interview 3.

particular provisions at the margin. Yet those negotiations proceeded under the premise—one that businesses could no longer effectively contest—that the bill should pass in some form. The retreat of business from public opposition thus narrowed the scope of conflict and gave proponents just enough political space to build a winning coalition for a trade sanctions bill that might otherwise have died in business-friendly committees.

Discussion

The UFLPA represents one of the most significant, and most surprising, pieces of trade sanctions legislation inspired by human rights concerns. Alongside the Trade Facilitation and Trade Enforcement Act (TFTEA) and the United States–Mexico–Canada Agreement (USMCA), it forms an important part of the legal infrastructure for U.S. forced labor enforcement. Together, these measures have helped revamp an enforcement machinery that had been hamstrung for decades. Studying this landmark legislation also matters from a policy diffusion perspective. The E.U. enacted its own Forced Labour Regulation in 2024, following its earlier adoption of a sanctions regime against human rights abusers similar to the U.S. Global Magnitsky framework. Rights-based economic sanctions are likely to become more important in the future, as global supply chains become increasingly caught up in U.S.-China strategic competition. Both countries are expanding their use of economic tools, including tariffs, export controls, and investment screening, to exercise leverage over one another. Human rights concerns are caught in this geoeconomic turn in global affairs. My study offers a case through which to theorize and examine the conditions under which such rights-based economic sanctions are likely to overcome entrenched business interests and political obstacles.

The UFLPA offers rich within-case variation and evidence that illuminate the mechanisms that enabled its passage. But one senior congressional staffer cautioned against generalizing from this particular episode:

> "it is a model but is not replicable, meaning that there are elements in both the form and how it was done that should be followed. But I don't think you can just take

it and replicate it in another instance because of the unique features of the Uyghur situation and the forced labor issues."[71]

This study is an attempt to explicitly theorize the "elements in both the form and how it was done." I emphasize the rich coalitional dynamics that the Uyghur forced labor frame produced and the tripartite contestation among civil society actors, politicians, and businesses. Civil society actors drew on their institutional embeddedness to supply the frame, which in turn broadened the bipartisan, interbranch coalition and constrained business opposition. Each component identifies specific actors, their properties, and the activities through which they contributed to legislative change. Each can also be evaluated against empirical evidence from other cases. I hope this framework will inform comparative studies of similar rights-based economic sanctions.[72]

I conclude this article by elaborating on three paradoxes that the UFLPA battle reveals about human rights advocacy, business influence, and foreign economic policymaking. First, my analysis emphasizes the institutional embeddedness of diaspora and other human rights groups that allowed them to exercise leverage disproportionate to their electoral influence. The legislative outcome is not necessarily anti-majoritarian. The American public might well have supported stricter forced labor enforcement. Yet examining how these groups gained influence reveals a paradox of human rights advocacy. Rights-based legislation emerged from an institutional setting that is deeply elite-driven and characterized by limited access to a small set of institutions and decision makers. Only a select few civil society actors can embed themselves in those networks. Doing so requires years of cultivating personal ties and acquiring the tacit knowledge needed to advocate effectively. Yet these actors often derive their political standing from mass movements and communities that emphasize democratic and egalitarian values. This tension between elite advocacy and a broader membership base was also noted by Cmiel (1999) within Amnesty International in the 1970s: "Third-party influence was a game for insiders, working on a very different plane from the mass letter writing of Amnesty International. It worked by lobbying elites instead of harassing

[71]Interview 3.

[72]Recent examples include the Magnitsky Act in 2012; the Global Magnitsky Human Rights Accountability Act in 2016; the Hong Kong Human Rights and Democracy Act in 2019; the Hong Kong Autonomy Act in 2020; and the Burma Unified through Rigorous Military Accountability Act in 2022.

tyrants. It depended upon a few, very well informed activists winning entree to the corridors of power (in contrast to huge numbers of concerned citizens dunning dictators from afar)." How civil society groups, advocates, and communities navigate this tension has implications for their ability to secure new sanctions. It also matters for the legitimacy, longevity, and effectiveness of those measures and for the cohesion of the communities and organizations they represent.

Second, my analysis shows that the UFLPA's success was rooted in advocates' ability to bridge two foundational political traditions in America. They also fitted their policy solution into the growing U.S. economic sanctions machinery. Effective human rights advocacy thus depends on reframing issues to appeal to politicians within these coalitions and, on rare occasions, to build bridges between them. This creates incentives for advocates to selectively highlight aspects of their issues that resonate with existing coalitions in the U.S. It also encourages them to advocate for solutions that are politically convenient given the strength of the U.S. economic sanctions apparatus. Some scholars and commentators have long worried about U.S. foreign policymaking being captured by ethnic groups with intense and particular preferences. The reverse possibility, however, receives far less attention: Diaspora groups' worldviews, their framing of problems, and their proposed solutions may become increasingly aligned with, and shaped by, their host country's interests. One extreme example is documented in Haney and Vanderbush (1999), which describes how the Reagan administration cultivated and capitalized on Cuban diaspora organizations and their lobbying to advance its Cold War agenda. Meanwhile, diaspora actors and groups have agency and autonomy that also need to be recognized and theorized. This "entangled agency" casts doubt on treating diaspora influence as an independent variable driving foreign policymaking in the host country. A more satisfactory analysis needs to account for diaspora actors' institutional embeddedness and coalitional entanglement with politicians and institutions in their host countries. This calls for a processual and interactive framework, like the one I propose in this study, for examining policy outcomes.

Lastly, scholars have long argued that trade dependence reduces the likelihood of imposing economic sanctions. This may well hold for the overall bilateral relationship between two countries

as deeply integrated as the U.S. and China. But the Uyghur forced labor case shows how supply chain dependence on foreign goods itself gave proponents a powerful argument for more narrowly targeted intervention, short of calling for a broad ban on trade with China. Trade dependence thus gives businesses a material incentive to oppose sanctions while also offering advocates a concrete relationship through which to assign responsibility and demand action. Another avenue of inquiry is how far this argument can travel to specific, emerging supply chain relationships implicated in human rights abuses. Examples include surveillance and biometric identification technologies, as well as artificial intelligence used in control and repression. Comparative research could examine the coalitional politics that emerge around these products and relationships.

References

Alshaibi, Wisam H. (2024). "The Anatomy of Regime Change: Transnational Political Opposition and Domestic Foreign Policy Elites in the Making of US Foreign Policy on Iraq". *American Journal of Sociology* 130.3, pp. 539–594.

Apodaca, Clair (2006). *Understanding U.S. human rights policy : a paradoxical legacy / Clair Apodaca.* New York: Routledge.

Attia, Hana and Julia Grauvogel (2023). "Monitoring the Monitor? Selective Responses to Human Rights Transgressions". *International Studies Quarterly* 67.2, sqad014.

Ban, Pamela, Ju Yeon Park, and Hye Young You (2023). "How Are Politicians Informed? Witnesses and Information Provision in Congress". *American Political Science Review* 117.1, pp. 122–139.

Beach, Derek and Rasmus Pedersen (2016). *Causal Case Study Methods: Foundations and Guidelines for Comparing, Matching, and Tracing*. Ann Arbor, MI: University of Michigan Press.

Capoccia, Giovanni and R. Daniel Kelemen (2007). "The Study of Critical Junctures: Theory, Narrative, and Counterfactuals in Historical Institutionalism". *World Politics* 59.3, pp. 341–369.

Carothers, Christopher and Taiyi Sun (2023). "Bipartisanship on China in a polarized America". *International Relations* 0.0.

Cimino-Isaacs, Cathleen D., Christopher A. Casey, and Katarina C. O'Regan (2021). *Section 307 and U.S. Imports of Products of Forced Labor: Overview and Issues for Congress*. Tech. rep. R46631. Congressional Research Service.

Cmiel, Kenneth (1999). "The Emergence of Human Rights Politics in the United States". *The Journal of American History* 86.3, p. 1231.

Cox, Dan G and A Cooper Drury (2006). "Democratic Sanctions: Connecting the Democratic Peace and Economic Sanctions". *Journal of Peace Research* 43.6, pp. 709–722.

Curtice, Travis and Eric Reinhardt (2024). "The politics of human rights trade sanctions: evidence from the African Growth and Opportunity Act". *European Journal of International Relations* 30.1, pp. 227–251.

Davis, Bob (2025). *Broken Engagement: Interviews with Those Who Have Made — and Remade — the U.S.'s Policy Towards China*. Type: E-book. The Wire China.

Felbermayr, Gabriel et al. (2025). "Economic Sanctions: Stylized Facts and Quantitative Evidence". *Annual Review of Economics* 17, pp. 175–195.

Gheciu, Alexandra (2005). "Security Institutions as Agents of Socialization? NATO and the 'New Europe'". *International Organization* 59.4, pp. 973–1012.

Granovetter, Mark (1985). "Economic Action and Social Structure: The Problem of Embeddedness". *American Journal of Sociology* 91.3, pp. 481–510.

Hafner-Burton, Emilie M and Alexander H Montgomery (2008). "The Hegemon's Purse: No Economic Peace Between Democracies". *Journal of Peace Research* 45.1, pp. 111–120.

Hall, Richard L. and Alan V. Deardorff (2006). "Lobbying as Legislative Subsidy". *American Political Science Review* 100.1, pp. 69–84.

Haney, Patrick J. and Walt Vanderbush (1999). "The Role of Ethnic Interest Groups in U.S. Foreign Policy: The Case of the Cuban American National Foundation". *International Studies Quarterly* 43.2, pp. 341–361.

Hung, Ho-fung (2020). "The periphery in the making of globalization: the China Lobby and the Reversal of Clinton's China Trade Policy, 1993–1994". *Review of International Political Economy*, pp. 1–24.

Jacobs, Lawrence R. and Benjamin I. Page (2005). "Who Influences U.S. Foreign Policy?" *American Political Science Review* 99.1, pp. 107–123.

Jost, Tyler et al. (2024). "Advisers and Aggregation in Foreign Policy Decision Making". *International Organization* 78.1, pp. 1–37.

Judd, Nicholas et al. (2017). *congressional-record: A parser for the Congressional Record*.

Kaempfer, William H. and Anton D. Lowenberg (1988). "The Theory of International Economic Sanctions: A Public Choice Approach". *The American Economic Review* 78.4, pp. 786–793.

Kay, Adrian and Phillip Baker (2015). "What Can Causal Process Tracing Offer to Policy Studies? A Review of the Literature: A Review of Causal Process Tracing Literature". *Policy Studies Journal* 43.1, pp. 1–21.

Keys, Barbara (2010). "Congress, Kissinger, and the Origins of Human Rights Diplomacy". *Diplomatic History* 34.5, pp. 823–851.

Kim, In Song (2018). "LobbyView: Firm-level Lobbying & Congressional Bills Database". *Working paper available from https://web.mit.edu/insong/www/pdf/lobbyview.pdf.*

Kopchick, Connor et al. (2022). "Emerging diasporas: Exploring mobilization outside the homeland". *Journal of Peace Research* 59.2, pp. 107–121.

Kustra, Tyler (2022). "Sanctioning the Homeland: Diasporas' Influence on American Economic Sanctions Policy". *Journal of Conflict Resolution* 66.3, pp. 443–472.

Lampton, David M. (2001). *Same bed, different dreams : managing U.S.-China relations, 1989-2000 / David M. Lampton.* Publication Title: Same bed, different dreams : managing U.S.-China relations, 1989-2000. Berkeley: University of California Press.

Mann, Jim (1999). *About face : a history of America's curious relationship with China from Nixon to Clinton / James Mann.* 1st ed. Publication Title: About face : a history of America's curious relationship with China from Nixon to Clinton. New York: Alfred Knopf.

Montal, Florencia, Gino Pauselli, and María-José Urzúa (2026). "Critical Ties: How NGOs Become Reliable Information Suppliers to International Organizations". *British Journal of Political Science* 56, e56.

Obokata, Tomoya (2022). *Contemporary Forms of Slavery Affecting Persons Belonging to Ethnic, Religious and Linguistic Minority Communities: Report of the Special Rapporteur on Contemporary Forms of Slavery, Including Its Causes and Consequences.* UN Doc. A/HRC/51/26. United Nations Human Rights Council.

OHCHR (2022). *OHCHR Assessment of Human Rights Concerns in the Xinjiang Uyghur Autonomous Region, People's Republic of China.* Report. United Nations.

Pierson, Paul (2000). "Increasing Returns, Path Dependence, and the Study of Politics". *American Political Science Review* 94.2, pp. 251–267.

Ricks, Jacob I. and Amy H. Liu (2018). "Process-Tracing Research Designs: A Practical Guide". *PS: Political Science & Politics* 51.4, pp. 842–846.

Rodriguez, Pedro L., Arthur Spirling, and Brandon M. Stewart (2023). "Embedding Regression: Models for Context-Specific Description and Inference". *American Political Science Review*, pp. 1–20.

Saunders, Elizabeth N. (2022). "Elites in the Making and Breaking of Foreign Policy". *Annual Review of Political Science* 25.1, pp. 219–240.

Seawright, Jason and John Gerring (2008). "Case Selection Techniques in Case Study Research: A Menu of Qualitative and Quantitative Options". *Political Research Quarterly* 61.2, pp. 294–308.

Sil, Rudra and Peter J. Katzenstein (2010). "Analytic Eclecticism in the Study of World Politics: Reconfiguring Problems and Mechanisms across Research Traditions". *Perspectives on Politics* 8.2, pp. 411–431.

Snow, David A. et al. (1986). "Frame Alignment Processes, Micromobilization, and Movement Participation". *American Sociological Review* 51.4, p. 464.

Tama, Jordan (2024). *Bipartisanship and US foreign policy : cooperation in a polarized age*. 1st ed. New York: Oxford University Press.

Tansey, Oisin (2007). "Process Tracing and Elite Interviewing: A Case for Non-Probability Sampling". *PS: Political Science & Politics*.

Urtuzuastigui, Jerry (2023). "American Diasporas, Homeland Human Rights Conduct, and the Onset of Human Rights-Based Economic Sanctions". *International Interactions* 49.5, pp. 727–754.

Whang, Taehee (2011). "Playing to the Home Crowd? Symbolic Use of Economic Sanctions in the United States1: Playing to the Home Crowd?" *International Studies Quarterly* 55.3, pp. 787–801.

Zhao, Lingbo (2026). "Global Value Chains and Corporate Opposition to Sanctions". *International Studies Quarterly* 70.1, sqag010.